

NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT BETWEEN MERIDIAN SERVICES LLP AND PINNACLE INNOVATIONS CORP.

Between: **Meridian Services LLP** (Disclosing Party) and **Pinnacle Innovations Corp.** (Receiving Party)

Effective Date: 2024-09-26

Termination Date: 2027-09-26

Governing Law: the laws of the State of New York

1. Force Majeure

Neither Party shall be liable for any failure or delay in performance under this Agreement (other than payment obligations) to the extent caused by circumstances beyond the reasonable control of the affected Party, including but not limited to acts of God, war, terrorism, riots, epidemics, government actions, or internet or telecommunications failures. The affected Party shall promptly notify the other.

2. Confidentiality

Each Party agrees to keep confidential all Confidential Information received from the other Party. This obligation shall survive termination of this Agreement for a period of three (3) years. Disclosure is permitted only to employees or advisors who have a need to know and are bound by obligations at least as restrictive as those set forth herein.

3. Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months after its termination, neither Party shall directly or indirectly solicit or recruit any employee or contractor of the other Party who was involved in the performance of this Agreement, without prior written consent.

4. Intellectual Property

All intellectual property rights in deliverables created specifically for Pinnacle Innovations Corp. under this Agreement shall vest in Pinnacle Innovations Corp. upon full payment. Pre-existing intellectual property of each Party shall remain with that Party. MSL grants Pinnacle Innovations Corp. a non-exclusive, royalty-free licence to use any pre-existing intellectual property embedded in the deliverables solely for Pinnacle Innovations Corp.'s internal business purposes.

5. Entire Agreement

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

6. Scope of Services

Meridian Services LLP shall provide to Pinnacle Innovations Corp. the following services as detailed in Schedule A attached hereto: project management, technical implementation, quality assurance, documentation, and post-deployment support. Any modification to the scope of services must be agreed in writing by both Parties.

7. Term

This Agreement shall commence on the Effective Date, 2024-09-26, and shall continue until 2027-09-26, unless earlier terminated in accordance with Clause 6. Upon expiry, both Parties shall fulfil all outstanding obligations within fifteen (15) days.

8. Assignment

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party. Any purported assignment in violation of this clause shall be null and void. Notwithstanding the foregoing, either Party may assign this Agreement to an affiliate without consent, provided it gives thirty (30) days' prior written notice.

9. Notices

All notices under this Agreement shall be in writing and delivered to the addresses set out in Schedule B by registered post, courier, or email with read receipt. Notices shall be deemed received: (a) if by registered post, five (5) days after posting; (b) if by courier, one (1) business day after delivery; (c) if by email, on the day sent, provided no delivery failure notice is received.

10. Payment Terms

Pinnacle Innovations Corp. shall pay Meridian Services LLP a fee of Rs. 4,00,000 (Rupees Four lakh Only) for the Services rendered under this Agreement. Payment shall be made within thirty (30) days of receipt of an invoice. All amounts are exclusive of applicable taxes, which shall be borne by Pinnacle Innovations Corp.. Late payments shall attract interest at the rate of eighteen percent (18%) per annum.

11. Subcontracting

Meridian Services LLP shall not subcontract any material part of the Services without the prior written consent of Pinnacle Innovations Corp.. Where subcontracting is permitted, Meridian Services LLP shall remain fully responsible for the performance of the subcontractor and shall ensure the subcontractor is bound by obligations equivalent to those in Clause 4 and Clause 1.

12. Indemnification

Meridian Services LLP shall indemnify, defend, and hold harmless Pinnacle Innovations Corp. and its officers, directors, employees, and agents from and against any claims, losses, damages, liabilities, and expenses (including reasonable legal fees) arising out of Meridian Services LLP's breach of this Agreement or gross negligence or wilful misconduct. The indemnifying Party shall have the right to control the defence of any such claim.

13. Representations and Warranties

Each Party represents and warrants that: (a) it has full power and authority to enter into this Agreement; (b) this Agreement has been duly authorised and constitutes a valid, binding obligation; (c) the execution, delivery, and performance of this Agreement do not violate any applicable law, regulation, or third-party agreement.

14. Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable. The validity and enforceability of the remaining provisions shall not be affected.

IN WITNESS WHEREOF

Disclosing Party

Meridian Services LLP

Signature: _____

Name: _____

Title: _____

Date: _____

Receiving Party

Pinnacle Innovations Corp.

Signature: _____

Name: _____

Title: _____

Date: _____